

Smt. Anupama (Echal) Pukhram vs Shri Mayengbam Suraj Singh on 16 December, 2025

Author: Ahanthem Bimol Singh

Bench: Ahanthem Bimol Singh

SHAMURAILATPAM SUSHIL
SHARMA

Digitally signed by SHAMURAILATPAM
SUSHIL SHARMA
Date: 2025.12.17 13:35:08 +05'30'

Sl. No. 23

IN THE HIGH COURT OF MANIPUR
AT IMPHAL

MC(Mat.App.) No. 16 of 2025

Smt. Anupama (Echal) Pukhram
Applicant
Vs.
Shri Mayengbam Suraj Singh
Respondent

BEFORE
HON'BLE THE CHIEF JUSTICE MR. M. SUNDAR
HON'BLE MR. JUSTICE AHANTHEM BIMOL SINGH
ORDER

(Order of the Court was made by M. Sundar, CJ) 16.12.2025 [1] A matrimonial suit for restitution of conjugal rights filed by wife being Matrimonial (R&C) Suit No. 8 of 2022 on the file of Family Court, Manipur at Lamphelpat was dismissed. This 'judgment and order' shall be referred to as 'impugned judgment' and the 'court' shall be referred to as a 'Family Court'.

[2] Mr. Ajoy Pebam, learned counsel for wife, submitted that captioned 'miscellaneous case' ('MC') has been taken out with a condonation of delay (CoD) prayer qua 52 (fifty two) days delay in filing the appeal against the impugned judgment.

[3] Ms. Kh. Saibiya, learned counsel for the respondent/appellant, advertng to objections dated 16.12.2025, submitted that wife had full and complete knowledge of the impugned judgment of 06.06.2025 itself but delay in filing of application for certified copy has caused 52 (fifty two) days delay. It was also submitted that 52 days delay has not been properly explained.

[4] Mr. Ajoy Pebam, learned counsel for wife submitted that under the Hindu Marriage Act, 1955, the prescribed time is 90 (ninety) days whereas under the Family Courts Act, 1984 the time limit for a statutory appeal under Section 19 is 30 (thirty) days. It is in this context that there was some dilemma which led to 52 (fifty two) days delay. [5] This Court considered the submissions made on both sides. [6] This Court finds that the reasons for delay is acceptable considering facts and circumstances, the nature of the matter and the manner in which the wife/MC applicant is

circumstanced. [7] The result is, delay is condoned, captioned MC is allowed and ordered as prayed for.

[8] There shall be no order as to costs.

Sushil

JUDGE

CHIEF JUSTICE